

INTELLECTUAL PROPERTY & SOFTWARE LICENSING AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Intellectual Property & Software Licensing Agreement ("**Agreement**") is entered into on **24 September 2026**("Effective Date").

BETWEEN

SECUREBRIDGE ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India, hereinafter referred to as the "**Licensor**";

AND

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India, hereinafter referred to as the "**Licensee**".

The Licensor and Licensee are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. BACKGROUND

A. The Licensor has developed and owns certain proprietary software, algorithms, analytical tools and related intellectual property used for healthcare data analytics.

B. The Licensee operates hospital-management and pharmacy-management technology platforms and wishes to integrate and use certain Licensor technology within its business operations.

C. The Licensor is willing to grant the Licensee a limited licence to use the Licensed Technology subject to the terms and conditions of this Agreement.

Accordingly, the Parties agree as follows.

2. DEFINITIONS

2.1 "Licensed Technology"

Means the software, algorithms, documentation, APIs, technical materials and other intellectual property identified in **Schedule 1**.

2.2 "Licensed Software"

Means the executable software and related components specifically identified as licensed under this Agreement.

2.3 "Documentation"

Means user manuals, technical documentation, API documentation, implementation guides and other materials supplied by the Licensor relating to the Licensed Technology.

2.4 "License Fee"

Means the fees payable by the Licensee for the licence rights granted under this Agreement.

2.5 "Territory"

Means the geographical territory specified in Schedule 2.

2.6 "Authorised Users"

Means employees and authorised contractors of the Licensee who are permitted to access and use the Licensed Technology in accordance with this Agreement.

2.7 "Confidential Information"

Means non-public technical, commercial, financial or business information disclosed by either Party.

2.8 "Intellectual Property Rights"

Means patents, copyrights, trademarks, trade secrets, database rights, designs, know-how and other intellectual property rights recognised under applicable law.

3. GRANT OF LICENCE

Subject to the terms of this Agreement and payment of applicable fees, the Licensor grants the Licensee a:

limited, non-transferable, non-sublicensable, non-exclusive licence

to access, use, integrate and operate the Licensed Technology solely for the Licensee's internal business operations and the authorised services identified in Schedule 1.

The licence is limited to the Territory and term specified in this Agreement.

No rights are granted except those expressly stated in this Agreement.

4. LICENCE SCOPE

The Licensee may:

a. install and configure the Licensed Software within its authorised technical environment;

- b.** permit Authorised Users to access the Licensed Software;
- c.** integrate the Licensed Software with approved Licensee systems;
- d.** use the Documentation for internal operational and training purposes; and
- e.** make a reasonable number of backup copies where technically necessary for disaster recovery and business continuity.

The Licensee shall not use the Licensed Technology outside the permitted scope without the Licensor's prior written consent.

5. RESTRICTIONS

Except to the extent expressly permitted by applicable law, the Licensee shall not:

- a.** sell, distribute, rent, lease or commercially resell the Licensed Technology as a standalone product;
- b.** sublicense the Licensed Technology;
- c.** reverse engineer, decompile or disassemble the Licensed Software;
- d.** remove proprietary notices;
- e.** reproduce the Licensed Software beyond authorised backup copies;
- f.** use the Licensed Technology to develop a directly competing product using the Licensor's Confidential Information;
- g.** permit unauthorised persons to access the Licensed Technology; or
- h.** circumvent technical limitations or access controls.

Nothing in this clause restricts any activity that cannot lawfully be restricted under applicable law.

6. AUTHORISED USERS

The Licensee shall ensure that access to the Licensed Technology is limited to Authorised Users.

The Licensee shall:

- maintain appropriate access controls;
 - promptly deactivate access for departing personnel;
 - prevent sharing of authentication credentials; and
 - remain responsible for use of the Licensed Technology by its Authorised Users.
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7. TERRITORY

The licence granted under this Agreement shall apply within **India**.

The Licensee shall not intentionally make the Licensed Technology available for commercial use outside the Territory without the Licensor's prior written consent.

8. EXCLUSIVITY

The licence granted under this Agreement is **non-exclusive**.

The Licensor retains the right to:

- license the Licensed Technology to third parties;
- develop competing technology;
- use the Licensed Technology itself; and
- commercialise the Licensed Technology independently.

No exclusivity shall arise by implication.

9. TERM

This Agreement shall commence on the Effective Date and remain in force for **three (3) years**, unless terminated earlier in accordance with this Agreement.

The Parties may renew the Agreement by mutual written agreement.

10. LICENCE FEES

In consideration of the licence granted under this Agreement, the Licensee shall pay the Licensor:

Annual Licence Fee: INR 9,00,000 plus applicable taxes.

The annual licence fee shall be invoiced in advance at the beginning of each licence year unless otherwise specified in Schedule 2.

11. ROYALTIES

In addition to the annual licence fee, the Licensee shall pay a royalty of **2% of Net Revenue** generated from products or services expressly incorporating the Licensed Technology where such royalty is applicable under Schedule 2.

"Net Revenue" means gross amounts actually received by the Licensee from customers less applicable taxes, refunds and documented customer credits.

The Licensee shall maintain reasonable records necessary to calculate applicable royalties.

12. PAYMENT

Invoices shall be payable within **30 days** of receipt.

All payments shall be subject to applicable tax deductions required by law.

The Licensee shall notify the Licensor promptly of any disputed invoice, identifying the disputed amount and reason.

Undisputed amounts shall remain payable in accordance with the agreed payment terms.

13. TAXES

Fees stated under this Agreement are exclusive of applicable taxes unless expressly stated otherwise.

Each Party shall be responsible for taxes imposed on its income, profits and business operations.

Where withholding is legally required, the Licensee may make such withholding and shall provide appropriate documentation to the Licensor.

14. OWNERSHIP OF INTELLECTUAL PROPERTY

The Licensor retains all right, title and interest in and to:

- Licensed Technology;
- Licensed Software;
- Documentation;
- algorithms;
- source code;
- technical architecture;
- pre-existing improvements; and
- associated Intellectual Property Rights.

The Licensee does not acquire ownership of the Licensed Technology merely by obtaining a licence to use it.

15. LICENSEE MATERIALS

The Licensee retains ownership of:

- Licensee Data;
- Licensee software;
- Licensee trademarks;
- business processes; and
- other intellectual property independently owned by the Licensee.

The Licensor receives only the limited rights necessary to provide the Licensed Technology and related services.

16. IMPROVEMENTS

Any improvements, modifications or enhancements specifically developed by the Licensor to the Licensed Technology shall remain the property of the Licensor unless otherwise agreed in writing.

Any independently developed technology of the Licensee shall remain the property of the Licensee.

Neither Party shall acquire ownership of the other's pre-existing intellectual property merely because such intellectual property is used in connection with this Agreement.

17. SOURCE CODE

Unless expressly stated in Schedule 1, the licence does not include delivery of the Licensed Software's source code.

The Licensor shall retain the source code as its proprietary material.

Where the Parties agree to a source-code escrow arrangement, the terms shall be documented separately.

18. SOFTWARE SUPPORT

Where support is included in the licence package, the Licensor shall provide:

- technical support;
- bug fixes;
- maintenance releases;
- reasonable documentation updates; and
- security patches where commercially available.

Major new functionality may be subject to additional fees.

19. WARRANTIES

The Licensor warrants that:

- a. it has the authority to grant the licence;
- b. it owns or has sufficient rights in the Licensed Technology to grant the rights contemplated by this Agreement;
- c. the Licensed Software will materially conform to the agreed Documentation; and
- d. it will perform agreed support services with reasonable skill and care.

Except as expressly stated, the Licensed Technology is provided subject to the limitations set out in this Agreement.

20. INTELLECTUAL PROPERTY INFRINGEMENT

The Licensor shall defend and indemnify the Licensee against third-party claims alleging that the authorised use of the Licensed Technology infringes a third party's Intellectual Property Rights, subject to the limitations and procedures contained in this Agreement.

The Licensor shall have no liability to the extent a claim results from:

- unauthorised modification;
 - combination with technology not supplied or approved by the Licensor;
 - use outside the licence scope; or
 - continued use after receiving notice of an infringement issue where a commercially reasonable alternative was provided.
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21. INFRINGEMENT REMEDIES

If the Licensed Technology becomes subject to a valid infringement claim, the Licensor may, at its option:

- a. obtain the right for the Licensee to continue using it;
 - b. modify or replace the affected component with a functionally comparable alternative; or
 - c. terminate the affected licence and refund the proportionate prepaid licence fee attributable to the unused period.
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22. CONFIDENTIALITY

Each Party shall protect the other Party's Confidential Information.

Confidential Information shall be used only for purposes connected with this Agreement.

The receiving Party shall implement reasonable safeguards and shall restrict access to authorised personnel with a legitimate need to know.

These obligations shall survive termination for **three (3) years**, except for trade secrets, which shall remain protected for so long as they qualify as trade secrets under applicable law.

23. DATA PROTECTION

Where the Licensed Technology processes personal data, each Party shall comply with applicable data-protection laws.

The Licensor shall process Licensee Data only to the extent necessary to provide the Licensed Technology and agreed support services.

The Licensor shall implement reasonable technical and organisational safeguards.

The Licensor shall not use Licensee Data to train unrelated AI models or for independent commercial purposes without the Licensee's prior written authorisation.

24. SECURITY

The Licensor shall maintain reasonable security measures appropriate to the nature of the Licensed Technology.

Such measures may include:

- access controls;
- authentication;
- encryption;
- vulnerability management;
- logging;
- secure software development;
- incident response; and
- backup and recovery procedures.

The Licensor shall notify the Licensee without undue delay of a material security incident affecting Licensee Data.

25. AUDIT RIGHTS

The Licensee may, upon reasonable notice and not more than once annually, request reasonable documentation demonstrating compliance with material licensing and security obligations.

Where royalties are payable, the Licensee shall maintain records supporting royalty calculations.

The Licensor may audit such records upon reasonable notice, provided that the audit does not unreasonably disrupt the Licensee's operations.

26. COMPLIANCE WITH LAW

Each Party shall comply with applicable laws relating to its performance under this Agreement.

The Licensee shall use the Licensed Technology only for lawful purposes.

Neither Party shall use the Licensed Technology in violation of applicable export-control, sanctions, data-protection or intellectual-property laws.

27. INDEMNIFICATION

Subject to this Agreement, the Licensor shall indemnify the Licensee against third-party claims arising from:

- intellectual property infringement by the Licensed Technology;
- fraud or wilful misconduct by the Licensor; or
- material violation of applicable law by the Licensor in performing its obligations.

The Licensee shall indemnify the Licensor against third-party claims arising from:

- unauthorised use of the Licensed Technology;
 - Licensee Materials that infringe third-party rights; or
 - the Licensee's unlawful use of the Licensed Technology.
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28. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, neither Party shall be liable for indirect, incidental, special or consequential damages.

Subject to the exclusions below, each Party's aggregate liability shall not exceed the total licence fees paid or payable during the **12 months preceding the event giving rise to the claim**.

The limitation shall not apply to:

- fraud;
- wilful misconduct;
- unauthorised use or disclosure of Confidential Information;
- infringement or misappropriation of Intellectual Property Rights; or

- liabilities that cannot legally be limited.
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29. TERMINATION FOR BREACH

Either Party may terminate this Agreement if the other Party commits a material breach and fails to cure such breach within **30 days** after receiving written notice.

The Licensor may terminate the licence immediately where the Licensee materially and knowingly uses the Licensed Technology outside the agreed licence scope and fails to cease such use following written notice.

30. TERMINATION FOR INSOLVENCY

Either Party may terminate this Agreement, subject to applicable law, where the other Party becomes insolvent, enters liquidation or ceases substantial business operations.

31. EFFECT OF TERMINATION

Upon termination:

- a. the licence granted under this Agreement shall cease;
- b. the Licensee shall discontinue use of the Licensed Technology;
- c. the Licensee shall delete or return Licensed Software and Documentation as reasonably required, subject to legally required retention;
- d. each Party shall return or destroy Confidential Information as required; and
- e. accrued payment obligations shall survive.

The Licensee shall not be required to delete records that it is legally required to retain.

32. TRANSITION PERIOD

Following termination or expiry, the Licensor shall provide reasonable assistance for a period of up to **30 days** to facilitate orderly discontinuation or migration of the Licensed Technology.

Additional transition services may be charged at mutually agreed rates unless termination resulted from the Licensor's uncured material breach.

33. NO TRANSFER OF OWNERSHIP

Nothing in this Agreement shall be interpreted as an assignment, sale or transfer of ownership of the Licensed Technology.

The Licensee receives only the limited licence rights expressly granted under this Agreement.

34. ASSIGNMENT

Neither Party may assign this Agreement without the prior written consent of the other Party, except to a successor entity in connection with a merger, restructuring or sale of substantially all relevant assets.

Any permitted assignee shall assume the assigning Party's applicable obligations.

35. PUBLICITY

Neither Party shall use the other Party's name, trademarks or logos in marketing materials, press releases or public announcements without prior written consent.

36. GOVERNING LAW

This Agreement shall be governed by the laws of **India**.

Subject to the dispute-resolution provisions below, courts having competent jurisdiction at **Bengaluru, Karnataka** shall have jurisdiction.

37. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith negotiations between authorised senior representatives.

If a dispute remains unresolved for **30 days**, either Party may refer the dispute to arbitration under the **Arbitration and Conciliation Act, 1996**.

Unless otherwise agreed:

- the seat of arbitration shall be Bengaluru, India;
- proceedings shall be conducted in English; and
- the tribunal shall consist of one mutually appointed arbitrator.

Either Party may seek urgent interim relief from a competent court.

38. NOTICES

Formal notices shall be provided in writing by recognised courier, registered post or email to the authorised contact details designated by the Parties.

39. ENTIRE AGREEMENT

This Agreement and its Schedules constitute the entire understanding between the Parties regarding the Licensed Technology and supersede prior discussions relating to the same subject matter.

40. AMENDMENTS

Any amendment to this Agreement shall be valid only if made in writing and signed by authorised representatives of both Parties.

41. SEVERABILITY

If any provision is found invalid or unenforceable, the remaining provisions shall continue in full force and effect.

The Parties shall endeavour to replace the affected provision with a valid provision that most closely reflects the original commercial intention.

42. WAIVER

Failure or delay in exercising a right shall not constitute a waiver.

Any waiver must be expressly made in writing.

43. ELECTRONIC EXECUTION

This Agreement may be executed electronically and in counterparts to the extent permitted by applicable law.

Each counterpart shall constitute an original and all counterparts together shall constitute one instrument.

SIGNATURES

FOR SECUREBRIDGE ANALYTICS PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

FOR MEDINOVA TECHNOLOGIES PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

SCHEDULE 1 — LICENSED TECHNOLOGY

Licensed Product

SecureBridge Health Analytics Engine – Enterprise Edition

Components

1. Analytics engine
2. API framework
3. Dashboard module
4. Data-processing module
5. Reporting tools
6. Technical documentation
7. API documentation

Permitted Use

The Licensee may use the Licensed Technology for:

- internal business operations;
- integration with the Licensee's hospital-management platform;
- generation of operational analytics;
- authorised customer-facing services where expressly approved; and
- internal reporting.

Prohibited Use

The Licensee shall not:

- resell the software as a standalone product;
 - sublicense the software;
 - reverse engineer the software except where legally permitted;
 - provide access to unauthorised third parties; or
 - use the Licensed Technology outside the agreed Territory.
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SCHEDULE 2 — COMMERCIAL TERMS

Territory

India

Licence Type

Non-exclusive

Initial Term

3 years

Annual Licence Fee

INR 9,00,000 + applicable taxes

Royalty

2% of applicable Net Revenue

Payment Terms

30 days from receipt of undisputed invoice

Support

Standard technical support included.

Renewal

Renewal shall be subject to mutual written agreement.
